

§ 736. Issuance of summons. (1) On the filing of a petition under this article, the court may cause a copy of the petition and a summons to be issued, requiring the respondent and his parent or other person legally responsible for his care, or with whom he is domiciled, to appear at the court at a time and place named to answer the petition. The summons shall be signed by the court or by the clerk or deputy clerk of the court. If those on whom a summons must be served are before the court at the time of the filing of a petition, the provisions of part four of this article shall be followed.

(2) In proceedings originated pursuant to subdivision (b) of section seven hundred thirty-three of this article, the court shall cause a copy of the petition and notice of the time and place to be heard to be served upon any parent of the respondent or other person legally responsible for the respondent's care who has not signed the petition, provided that the address of such parent or other person legally responsible is known to the court or is ascertainable by the court. Such petition shall include a notice that, upon placement of the child in the care and custody of the department of social services or any other agency, said parent may be named as a respondent in a child support proceeding brought pursuant to article four of this act. Service shall be made by the clerk of the court by mailing such notice and petition by ordinary first class mail to such parent or other person legally responsible at such person's last known residence.

(3) In proceedings originated pursuant to subdivision (a), (c), (d) or (e) of section seven hundred thirty-three of this article, the court shall cause a copy of the petition and notice of the time and place to be heard to be served upon each parent of the respondent or other person legally responsible for the respondent's care, provided that the address of such parent or other person legally responsible is known to the court or is ascertainable by the court. Service shall be made by the clerk of the court by mailing such notice and petition by ordinary first class mail to such parent or other person legally responsible at such person's last known residence.

(4) Where the petition contains allegations of truancy and/or school misbehavior and where the school district or local educational agency is not the petitioner and where, at any stage of the proceeding, the court determines that assistance by the school district or local educational

agency may aid in the resolution of the education-related allegations in the petition, the school district or local educational agency may be notified by the court and given an opportunity to be heard.